

Court No. - 40

Case :- WRIT - C No. - 18900 of 2023

Petitioner :- Tarang Agrawal

Respondent :- Managing Director Purvanchal Vidyut Vitran
Nigam Ltd. And 2 Others

Counsel for Petitioner :- Prateek Bansal, Anshul Bansal

Counsel for Respondent :- Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner and Sri Sushil Kumar Pandey, learned counsel for the respondents/Electricity Department.
2. The present writ petition has been preferred assailing the impugned letter/order dated 03.02.2023 passed by respondent no. 3 (Annexure No. 12 to the writ petition) and further commanding the respondents to reconnect the electricity supply of the petitioner.
3. The order impugned is challenged precisely on the ground that even though the provisional assessment notice was issued to the petitioner on 04.06.2021 but till date without final assessment, the order impugned has been passed on 03.02.2023 and the electricity connection of the petitioner has also been discontinued w.e.f. 30.01.2023. In support of his submissions, learned counsel for the petitioner has placed reliance upon judgment and order of this Court in ***Rituraj Vs. State of U.P. And 3 Others*** (Writ C No. 35477 of 2016, dt. 14.12.2017) and submits that the entire action of the respondents is per se unsustainable in view of the Electricity Supply Code 2005.
4. Considering the facts and circumstances, let the respondents place on record in what manner without any final assessment, they have disconnected the electricity of the petitioner. On the request of learned counsel for the respondents, the case is passed over for the day.
5. Put up this matter on 19.7.2023 as fresh.

Order Date :- 7.7.2023

A.K.Srivastava

Court No. - 40

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Petitioner :- Tarang Agrawal

Respondent :- Managing Director Purvanchal Vidyut Vitran
Nigam Ltd. And 2 Others

Counsel for Petitioner :- Prateek Bansal, Anshul Bansal

Counsel for Respondent :- Sushil Kumar Sharma

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

On the request of learned counsel for contesting respondent, the
matter is passed over.

Put up as fresh on 24.07.2023.

Order Date :- 19.7.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 18900 of 2023

Petitioner :- Tarang Agrawal

Respondent :- Managing Director Purvanchal Vidyut Vitran
Nigam Ltd. And 2 Others

Counsel for Petitioner :- Prateek Bansal, Anshul Bansal

Counsel for Respondent :- Sushil Kumar Sharma

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner and Sri Sushil Kumar Sharma, learned counsel for the respondents.

2. The matter was taken up on 07.07.2023 and on the said date, the Court had proceeded to pass following order:-

"1. Heard learned counsel for the petitioner and Sri Sushil Kumar Pandey, learned counsel for the respondents/Electricity Department.

2. The present writ petition has been preferred assailing the impugned letter/order dated 03.02.2023 passed by respondent no.3 (Annexure No. 12 to the writ petition) and further commanding the respondents to reconnect the electricity supply of the petitioner.

3. The order impugned is challenged precisely on the ground that even though the provisional assessment notice was issued to the petitioner on 04.06.2021 but till date without final assessment, the order impugned has been passed on 03.02.2023 and the electricity connection of the petitioner has also been discontinued w.e.f. 30.01.2023. In support of his submissions, learned counsel for the petitioner has placed reliance upon judgment and order of this Court in Rituraj Vs. State of U.P. And 3 Others (Writ C No. 35477 of 2016, dt. 14.12.2017) and submits that the entire action of the respondents is per se unsustainable in view of the Electricity Supply Code 2005.

4. Considering the facts and circumstances, let the respondents place on record in what manner without any final assessment, they have disconnected the electricity of the petitioner. On the request of learned counsel for the respondents, the case is passed over for the day.

5. Put up this matter on 19.7.2023 as fresh."

3. Today, when the matter is taken up, learned counsel for the respondents has placed a detailed instructions dated 19.7.2023 sent by the Executive Engineer, Electricity Distribution Division-Second, Purvanchal Electricity Distribution Nigam Limited,

Mirzapur, wherein it has been stated that in compliance of the aforesaid order, the final assessment has been withdrawn and the notice is issued to the petitioner on 19.07.2023 to submit his reply within 15 days. It is submitted that the cause of filing the writ petition no more survives and the writ petition is liable to be dismissed as infructuous. The same is taken on record.

4. Accordingly, the writ petition is dismissed as infructuous.

Order Date :- 24.7.2023

RKP